

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Defendants’ Opposition to Rule 54(b) Motion

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 58 — Filed January 30, 2026

Defendants Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC oppose Asterglen's request for immediate entry of partial final judgment. The January 12, 2026 order dismissed Count I with prejudice, but Count II and Copper's amended counterclaim remain pending. Those claims arise from the same deployment, the same communications, the same asserted authorization for 29 additional terminals, and the same claimed financial consequences. This is not the unusual case in which fragmenting review would advance efficient administration.

Asterglen correctly recognizes that a separate document alone is insufficient. Rule 54(b) requires both a final disposition of an individual claim and an express determination that there is no just reason for delay. The second requirement calls for a case-specific assessment, not a presumption in favor of appeal whenever one count is dismissed. Here, the factual and remedial overlap supplies substantial reason to await resolution of the entire action.

The Court should deny the motion. If the Court nevertheless considers certification, Defendants request findings that confront the relationship among the claims, the possibility of repeated appellate review, and Copper's \$120,000 counterclaim and potential setoff. A bare direction to enter judgment would not answer those concerns or satisfy the express determination required by the rule.

I. Rule 54(b) disfavors piecemeal appeals

Rule 54(b) does not convert every order resolving one count into a final decision. In a multiple-claim action, a ruling on fewer than all claims remains subject to revision unless the Court makes the required determination and direction. The governing inquiry has two parts: whether the ruling ultimately disposes of an individual claim and whether sound judicial administration and the equities leave no just reason to postpone appellate review.

The first part does not resolve this motion. Defendants accept for present purposes that the dismissal with prejudice completed Count I in this Court. The dispute concerns the second part. The Court should consider how closely Count I relates to the pending claims, whether later proceedings could affect the need for or scope of review, whether the court of appeals might face the same factual or legal questions twice, whether a counterclaim may produce a setoff, and whether any genuine hardship outweighs the ordinary policy against fragmented litigation.

Kinsale Insurance Co. v. JDBC Holdings, Inc., 31 F.4th 870, 873–76 (4th Cir. 2022), instructs that certification should be uncommon and supported by findings tied to the actual record. The absence of a trial date for the remaining claims does not itself establish hardship. Nor does a litigant's desire to challenge an adverse merits ruling immediately. Unless the relevant factors point toward immediate review, the ordinary course is one appeal after the unresolved claims reach judgment. That course permits a single record, one account of the facts, and relief informed by the complete disposition.

II. All three claims depend on the same deployment history

Count I, Count II, and Copper's amended counterclaim cannot be separated as neatly as Asterglen suggests. Each begins with the April 15, 2024 Pilot License for 12 terminals and the June 3 proposal to add 29 terminals. Each requires attention to Asterglen's June 10 written conditions, Meridian's June 14 integration work, the provisioning of 41 identifiers by July 1, and the parties' conflicting accounts of the July 8 call. The July 18 audit and July 22 termination are central to every claim.

The evidence after termination is also shared. Asterglen relies on proof that the identifier count could have been reduced within three business days. Meridian's work through July 25 bears on whether a cure was possible, what the parties expected, and whether any conduct caused compensable loss. Copper relies on the same sequence to support its performance and offset allegations. Different claim elements do not erase this common evidentiary core.

An appellate decision on Count I could require an extended description of those facts. The district proceedings on Count II and the counterclaim will examine them again, possibly with credibility determinations and a fuller account of causation and damages. Certification therefore risks asking two courts to evaluate overlapping portions of one transaction at different procedural stages. Waiting will not prevent review of Count I; it will permit that review to occur with the remainder of the case and a complete understanding of the resulting obligations.

III. The pending claims may shape relief and appellate presentation

Copper's amended counterclaim seeks \$120,000 based on the deployment, cure, performance, and offset allegations. If Copper prevails, the resulting award may reduce or otherwise affect any net recovery Asterglen could obtain if Count I were later revived. Rule 54(b) specifically calls for attention to a counterclaim that could produce a setoff because separate judgments may create avoidable uncertainty about collection and relief.

Count II likewise seeks \$360,000 from Meridian for alleged interference with the same contractual relationship. Asterglen's damages account cannot be evaluated in isolation from its assertion that both defendants caused losses during the same operational period. The remaining proceedings may determine whether claimed losses arose from Copper's deployment activity, Meridian's conduct, Asterglen's own provisioning decisions, or some combination. Those determinations may narrow the issues worth presenting on appeal even if they do not formally vacate the Count I ruling.

Asterglen proposes to confine the appeal to contract interpretation, but the summary-judgment submissions did not present an abstract question. They addressed the writings, the disputed oral-permission account, the audit, the immediate demand, cure feasibility, and ongoing work. The court of appeals would have to view that record under the summary-judgment standard. A later appeal after resolution of Count II and the counterclaim could return to many of the same events. One comprehensive appeal avoids that repetition and permits coherent treatment of relief.

IV. The stated equities do not require immediate review

Asterglen identifies ordinary litigation expense and the desire for prompt review of a dismissed claim. Those circumstances exist in many actions where some claims are resolved before others. They do not establish a pressing hardship, an imminent loss of rights, or a circumstance that cannot be addressed after final judgment. Count I remains preserved for later appellate review, and no party contends that postponement will make the relevant documents unavailable.

Certification also would not necessarily simplify the district case. Count II and the amended counterclaim would continue unless stayed by another order. The parties still would conduct any remaining preparation and litigate liability and damages. Meanwhile, an appeal would require separate briefing about the same license and deployment history. Parallel activity could increase rather than reduce cost, and a remand on Count I could enlarge the proceedings before the existing claims are complete.

The equities on the other side are concrete. Copper should not face enforcement uncertainty between Asterglen's \$480,000 demand and Copper's unresolved \$120,000 counterclaim. Meridian should not have the shared factual history characterized on appeal while its interference liability remains undecided below. The Court benefits from resolving related claims in an orderly sequence. None of these considerations forecloses eventual appellate review; they support deferring it until the Court can enter a judgment that concludes the whole action.

V. Neither a separate document nor another statute supplies the missing determination

Asterglen's proposed judgment cannot replace the Court's required analysis. A separate document under Rule 58 identifies the judgment entered, but Rule 54(b) separately demands the Court's express determination concerning delay. If the Court grants the motion, the operative order or judgment must contain that determination. The fact that Asterglen requested the words does not make them a judicial finding, and the Clerk's act of entering a document cannot supply an omitted judicial conclusion.

Asterglen also invokes the absence of another immediate-review route. That absence favors the ordinary final-judgment rule; it does not lower Rule 54(b)'s standard. Section 1292(a)(1) concerns specified injunction orders, and this case presents no such order. Section 1292(b) has its own requirements for a controlling question of law and permission from both courts. Asterglen has not sought that route. Rule 54(b) must therefore stand or fall on its own predicates.

The Court should not assume that dismissal with prejudice makes the certification automatic. Final disposition of Count I satisfies only the first inquiry. The relationship of claims, repeated-review risk, counterclaim and setoff issues, and absence of exceptional hardship all remain. If the Court decides against Defendants on balance, it should state the case-specific reasons and define precisely what judgment is being entered. Without that express judicial work, docketing a separate partial judgment would leave the jurisdictional basis uncertain.

VI. The requested appeal risks duplicative review

The first appeal would ask the Fourth Circuit to determine whether the summary-judgment record permitted judgment for Copper on the Section 9.2 condition. That record includes the contract schedules, proposed change order, June 10 response, provisioning ledger, July communications, audit, depositions, and cure-feasibility evidence. The unresolved claims draw on much of that same material. A second appeal could therefore require another panel to study the identical chronology in deciding interference, causation, counterclaim liability, damages, or setoff.

There is also a risk that the posture of the remaining claims will change the practical significance of the first appeal. A judgment for Copper on its counterclaim or a judgment concerning Meridian's role could affect the scope of recoverable loss and the form of any remand. Conversely, a settlement or later ruling could narrow what remains contested. Deferring review allows those possibilities to resolve before appellate resources are committed.

Defendants do not argue that factual overlap categorically bars certification. The rule requires judgment rather than a mechanical test. In this record, however, overlap is extensive, the counterclaim is live, no extraordinary hardship has been shown, and the remaining claims are proceeding in this Court. Together those considerations provide just reason to wait. The normal one-appeal course protects the parties from inconsistent presentations and gives the appellate court a complete disposition rather than a selected slice of an unfinished commercial dispute.

VII. Conclusion and certificate of service

For the stated reasons, Defendants request denial of Asterglen's motion. If relief is granted, the Court should address the relevant factors in its own order and limit any judgment to Count I.

Respectfully submitted, Counsel for Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

I certify that on January 30, 2026, this opposition was filed through the Court's electronic filing system, which sent notice to all counsel of record. No new exhibit accompanies the opposition.